

23SMCV05294 23SMCV05294

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-24

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Case Number: 23SMCV05294 Hearing Date: June 24, 2026 Dept: I

This is an application to continue the trial. It is DENIED.

This case is over 2.5 years old. The Case Management Conference was held on December 24, 2024. At the CMC, the court set the instant trial date, but only after confirming that there were no conflicts with the date and that all parties were available and that it was sufficient time for the parties to be ready for trial. The court verbally stated that there would be no continuances absent truly unforeseen and unforeseeable circumstances, and that was reflected in the Minute Order, which states that there will be no continuances absent extraordinary good cause. The court also set a mediation completion date of March 16, 2026—a date that was suggested by the parties.

The parties state that they have been diligent, but that discovery is still ongoing. Further, they would like to mediate at the end of July. That makes no sense to the court.

The trial date was set about 20 months before the trial. There is no explanation as to why the necessary discovery could not be done in a timely way. Other than a statement that the parties have been diligent, the court has no evidence of diligence. As to mediation, there is no explanation as to why the parties ignored the court's order (made with the parties' express approval) that the mediation be completed by March 16, 2026—a date they suggested. The reason for the mediation completion date was precisely to allow the parties to do the necessary discovery (or at least the critical discovery) and then mediate well in advance of the trial.

The court is not trying to be difficult. When this court took over the department, the

court had about 800 cases on the docket.

The court routinely gave first continuances of a few months if the request was joint because the court had plenty of spots to put the trial. The court now has over 1300 cases on the docket, and at the CMC, the court had over 1100 cases on the docket. Because this is an I/C court, trials take longer. It takes 3 weeks to try most cases (start to finish), so if one does the math it will take about 100 years to try the current docket. Now, we all know that is not a real number because the vast majority of cases settle or otherwise resolve without a trial or a continuance. But even assuming that 95% of the cases are in that category, it will take 5 years to try the cases that remain. Worse, the docket is growing each month. (This is a problem County-wide, not just in Department I or the West District.) The reality is that the court has nowhere to put this case if the trial date is vacated. And that is why the court gave the warning that it did at the CMC; so that the parties would know that the deadlines were real and act accordingly.

Because the court's docket is what it is, the request must be DENIED.